

25STCV30994 25STCV30994

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Case Number: 25STCV30994 Hearing Date: August 25, 2026 Dept: 514

Martinez v. Just One Eye LLC

25STCV30994

Motion

of Defendant Anello Security and Consulting, Inc. to Compel Defendant and

Cross-Complainant Just One Eye LLC to Provide Further Responses to Special

Interrogatories (Set One)

Tentative Ruling

The motion is denied. The requests for sanctions are denied.

Background

On October 23, 2025, Abelina Mendoza Martinez

("Plaintiff") filed a complaint against Just One Eye LLC ("JOEL"), Anello

Security and Consulting, Inc. ("Anello"), and Gary Gamble for (1) negligence,

(2) premises liability, (3) negligent hiring, (4) negligent supervision, and

(5) negligent exercise of retained control causes of action arising out of Plaintiff's

injury on November 10, 2023 when a metal and glass art installation fell on top of Plaintiff.

On December 17, 2025, JOEL filed an answer and cross-complaint for total and partial indemnity against Anello and Gary Gamble.

On February 4, 2026, JOEL filed the First Amended Cross-Complaint for indemnity and declaratory relief.

On February 13, 2026, Anello and Gary Gamble filed an answer to Plaintiff's Complaint.

On February 17, 2026, Anello and Gary Gamble filed a cross-complaint against JOEL for (1) equitable indemnity, (2) declaratory relief and (3) negligence.

On March 9, 2026, JOEL filed an answer to Anello and Gamble's Cross-Complaint.

On April 14, 2026, Anello and Gamble filed an answer to JOEL's First Amended Cross-Complaint.

On June 17, 2026, Anello filed this motion to compel JOEL's further responses to Special Interrogatories, Set One.

On June 18, 2026, Anello filed an amended separate statement.

On July 10, 2026, JOEL filed an opposition.

On July 17, 2026, Anello filed a reply.

On July 24, 2026, the Court continued this

matter to August 20; nothing further was filed in the interim.

Trial is set for February 14, 2028.

Legal Standard

“On receipt of a response to interrogatories, the propounding

party may move for an order compelling a further response if the propounding

party deems that any of the following apply: (1) An answer to a particular

interrogatory is evasive or incomplete. (2) An exercise of the option to

produce documents under Section 2030.230 is unwarranted or the required

specification of those documents is inadequate. (3) An objection to an

interrogatory is without merit or too general.”

(Code Civ. Proc., § 2030.300, subd. (a).)

Notice of a motion to compel further responses must be given

“within 45 days of the service of the verified response, or any supplemental

verified response, or on or before any specific later date to which the

propounding party and the responding party have agreed in writing.” (Id.,

subd. (c).)

A motion to compel further responses must be accompanied by a meet-and-confer

declaration and a separate statement or, in the discretion of the Court, a

“concise outline of the discovery request and each response in dispute.” (Id.,

subd. (b)(1) & (b)(2); Cal. Rules of Court, rule 3.1345.)

“The court shall

impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)

against any party, person, or attorney who unsuccessfully makes or opposes a

motion to compel a further response to interrogatories, unless it finds that

the one subject to the sanction acted with substantial justification or that

other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).)

In Chapter 7 of the

Civil Discovery Act, Code of Civil Procedure section 2023.030, subdivision (a)

provides, in pertinent part, that the court may impose a monetary sanction ordering

that any person “engaging in the misuse of the discovery process, or any

attorney advising that conduct, or both pay the reasonable expenses, including

attorney’s fees, incurred by anyone as a result of that conduct.” A “misuse of

the discovery process” includes (among other things) failing to respond or to

submit to an authorized method of discovery; making, without substantial

justification, an unmeritorious objection to discovery; making an evasive

response to a discovery request; disobeying a court order to provide discovery;

and making or opposing, unsuccessfully, a motion to compel without substantial

justification. (Code Civ. Proc., § 2023.010, subds. (d)-(h).)

Discussion

Defendant and

Cross-Defendant Anello Security and Consulting, Inc. ("Anello") brings this

motion to compel Defendant and Cross-Complainant Just One Eye LLC ("JOEL") to

provide further responses to Special Interrogatories (Set One) Nos. 13, 14, 15,

13 [sic], 16, 17, 18, and 19.

The Court has

reviewed the briefing and evidence submitted, including (but not limited to)

the interrogatories and responses.

The motion is

denied.

The Court finds

that Special Interrogatories Nos. 13-16 (including both interrogatories numbered

as "13") are vague as to the term "installation," and that the responding party's

interpretation of the term is reasonable.

The Court further finds that the responses to Special Interrogatories

Nos. 18-19 are sufficient and code compliant.

Moving party

may, of course, propound additional interrogatories if it seeks to discover

additional facts not provided in response to these interrogatories.

The requests for

sanctions are denied. Moving party's

request is denied because the motion is not successful. Responding party's request is denied because moving

party acted with substantial justification.

Conclusion

The Court DENIES

the motion of Anello Security and Consulting, Inc. to compel Just One Eye LLC to provide further responses

to Special Interrogatories (Set One).

The Court DENIES

both parties' requests for sanctions.

Moving Party is ORDERED to give notice.